

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Purchased:

-----X
MUHAMMAD ADDISON

Plaintiff designates
Bronx County as the place of trial

Plaintiff,

The basis of the venue is where the
injury occurred

-against-

CITY OF NEW YORK, Individually and officially in
their capacities as New York City Police Officers,
WILLIAM STUMP, and JOHN or JANE DOE 1-10,

SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
November 27, 2019



SIM & DEPAOLA, LLP
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard - Suite 201
Bayside, New York 11361
(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**WILLIAM STUMP, P.O. OF THE 42ND PCT.
SHIELD #18485**

830 Washington Ave
Bronx New York 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
MUHAMMAD ADDISON,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, Individually and officially in
their capacities as New York City Police Officers,
WILLIAM STUMP, and JOHN or JANE DOE 1-10,Defendants.
-----X

Plaintiff, Muhammad Addison, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. On or about October 25, 2018, Plaintiff Muhammad Addison was falsely arrested for a crime that allegedly occurred between August 15 and August 18 of the year 2013. On, or about, October 26, 2018, a criminal prosecution was initiated against Mr. Addison. As a threshold matter, Mr. Addison's arrest and subsequent prosecution were unlawful, as a matter of law, because the applicable criminal statute of limitations for Burglary in the Second Degree is five (5) years. As a result, Mr. Addison was deprived of his liberty and suffered serious physical and psychological injuries. Mr. Addison was detained for approximately two (2) days or approximately thirty-eight (38) hours. He was released on his own recognizance on or about October 26, 2018. All charges were unconditionally dismissed by the Grand Jury on December 20, 2018.

2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff, MUHAMMAD ADDISON (“Mr. Addison” or “plaintiff”), resides at 2125 Amsterdam Avenue, New York County, State of New York.

4. The Defendant City of New York (“City”) is a municipal corporation organized under the laws of the State of New York.

5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

7. Defendant William Stump (“Stump”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Stump was, at the times relevant herein, a Police Officer under Shield #18485, in the 42nd Precinct, located at 830 Washington Ave, Bronx, NY 10451. Defendant Stump is being sued in his individual and official capacities.

8. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants John or Jane Doe 1 through 10, as such knowledge is within the exclusive possession of defendants.

9. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.

10. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

11. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

12. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.

13. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

14. On October 25, 2018, at approximately 9:00 a.m., Mr. Addison was meeting his probation officer, Ms. Reid, at a probation office on Canal Street, City and State of New York.

15. Defendants, including Stump, arrived at the Probation Office, and removed Mr. Addison to the 42nd NYPD Precinct, located at 830 Washington Ave, Bronx, New York.

16. At the 42nd NYPD Precinct, Defendants, including Stump, unlawfully arrested and illegally searched and seized Mr. Addison for an alleged burglary of an apartment residence that occurred between August 15 and August 18 of 2013, despite defendants' full knowledge that plaintiff did not commit said burglary and that the applicable statute of limitations for defendants to criminally prosecute plaintiff has expired more than two (2) months prior, on August 18, 2018.

17. Defendants, including Stump, predicated plaintiff's arrest and criminal prosecution solely on defendants' claim that plaintiff's DNA was recovered on a can of ginger ale that was inside the subject apartment residence.

18. Defendants, including Stump, never possessed a judicially authorized warrant or probable cause for plaintiff's arrest.

19. Defendants, including Stump, suppressed and withheld exculpatory evidence from prosecutors, namely that plaintiff lived in the same building at the time of the alleged burglary and that he was often lawfully inside of the subject apartment, as an invited guest of the legal resident, which was all confirmed by defendants' independent investigation.

20. Defendants, including Stump, fabricated false evidence against plaintiff, namely that the resident of the subject apartment had never permitted plaintiff to enter or remain in the subject apartment and that plaintiff's guilt was the only explanation for plaintiff's DNA on the can and forwarded said fabrications to prosecutors.

21. Defendants, including Stump, physically grabbed plaintiff by his body, completely restricting his freedom of movement.

22. Defendants, including Stump, proceeded to search plaintiff without his consent or probable cause or reasonable to do so.

23. Defendants, including Stump, did not have reasonable suspicion or probable cause to stop, question, frisk, search or seize Mr. Addison., as there was a complete absence of inculpatory evidence, including testimonial and physical, against plaintiff.

24. Defendant Stump was Mr. Addison's arresting officer and signed the criminal court complaint against him, in which he perjurally accused Mr. Addison of burglarizing an apartment residence, despite his full knowledge that said allegations were completely untrue and that he

lacked the requisite probable cause to accuse of Mr. Addison of any crime, particularly the purported burglary of the subject apartment residence .

25. Defendants, including Stump, performed their law enforcement investigatory duties in a manner that grossly deviated from normal police practice, because they disregarded exculpatory evidence and engaged in the fabrication of inculpatory evidence that they then forwarded to prosecutors.

26. Defendants, including Stump, committed multiple assaults and batteries to plaintiff's person, including the forceful contortion of plaintiff's arms behind his back, the placement of metal handcuffs upon plaintiff's wrists in an excessively tight fashion, various intrusive searches of plaintiff's person and the physical removal of plaintiff to a jail cell

27. Defendants, including Stump, clearly knew that Mr. Addison had not committed any crimes or violations of the law, as the dearth of any inculpatory evidence against plaintiff was undeniable.

28. Defendants, including Stump, determined that plaintiff had not committed any crimes or violations of the law, they still proceeded to process Mr. Addison to cover for the fact that they had held plaintiff unlawfully in custody for approximately thirty-eight (38) hours, despite possessing no evidence, physical, testimonial or otherwise, that plaintiff committed or even attempted to commit a crime or violation of the law.

29. Defendants, including Stump, caused a criminal prosecution to initiated against plaintiff, not because they believed him to be guilty of any crime, but because of defendants' selfish desires to be credited with an additional arrest on an alleged crime that had been unsolved for over five (5) years.

30. At no point did defendants, including Stump, ever observe Mr. Addison in possession of stolen property, engage in the commission of any burglary or commit or attempt to commit any other crime or violation of the law.

31. At no point did any witnesses, civilian or otherwise, ever inform defendants that plaintiff had committed or even attempted to commit a crime or violation of the law, including burglary.

32. Defendants, including Stump, participated in the unlawful arrest and malicious prosecution of Mr. Addison by physically grabbing plaintiff without his consent, so that he was unable to freely move about.

33. Defendants, including Stump, forwarded false information to the Bronx County District Attorney's Office, namely that Mr. Addison had committed burglary, criminal trespass, and grand larceny, despite each defendant being fully aware of Mr. Addison's complete innocence and the expiration of all applicable criminal statutes of limitations.

34. Defendants, including Stump, engaged in a conspiracy to falsely arrest and maliciously prosecute Mr. Addison by personally conferring with each other, regarding the fabrication of the aforementioned false evidence, the suppression of exculpatory evidence, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

35. As a result of defendants,' including Stump's, fabrications, Mr. Addison was caused to remain unlawfully detained, as well as be subjected to other restrictions placed upon his liberty, both prior to and subsequent his criminal court arraignment.

36. Mr. Addison was unlawfully subjected to numerous restrictions being placed on his post-arraignment liberty and freedom of movement, including mandatory court appearance dates.

37. During all of the events described, the Defendants, including Stump, acted maliciously and with intent to injure Plaintiff.

38. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's serious injuries due to the Defendants,' including Stump's, use of excessive force.

39. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiff's arrest without probable cause.

40. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

41. Defendants' actions, pursuant to plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

42. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion

of discovery, as such information is presently within the exclusive possession of defendants, the NYPD and City of New York.

43. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.

44. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Stump.

45. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

46. The aforementioned acts of defendants, including the City and Stump, directly or proximately resulted in the deprivation or violation of plaintiff's civil rights, as guaranteed and

protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

47. As a direct or proximate result of said acts, plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Unlawful Search and Seizure Under
New York State Law

48. The above paragraphs are here incorporated by reference as though fully set forth herein.

49. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

50. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

51. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

52. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

53. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

54. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

55. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION
Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

56. The above paragraphs are here incorporated by reference as though fully set forth herein.

57. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

58. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

59. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

60. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

61. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

62. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
False Arrest and False Imprisonment Under
New York State Law

63. The above paragraphs are here incorporated by reference as though fully set forth herein.

64. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

65. Plaintiff was conscious of his confinement.

66. Plaintiff did not consent to his confinement.
67. Plaintiff's arrest and false imprisonment was not otherwise privileged.
68. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
69. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

70. The above paragraphs are here incorporated by reference as though fully set forth herein.
71. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
72. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
73. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
74. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

75. The above paragraphs are here incorporated by reference as though fully set forth herein.
76. At all relevant times, Defendants caused Plaintiff to fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

77. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent or justification.

78. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

79. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

81. The above paragraphs are here incorporated by reference as though fully set forth herein.

82. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

83. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

84. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

85. The above paragraphs are here incorporated by reference as though fully set forth herein.

86. Defendants initiated the prosecution against Plaintiff.

87. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

88. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

89. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed by the Grand Jury.

90. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered significant damages.

91. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

92. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

93. The above paragraphs are here incorporated by reference as though fully set forth herein.

94. Defendants initiated the prosecution against Plaintiff.

95. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

96. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

97. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed by the Grand Jury.

98. Accordingly, Defendants violated Plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments.

99. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

100. The above paragraphs are here incorporated by reference as though fully set forth herein.

101. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

102. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

103. Defendants intended to inflict substantial harm upon Plaintiff.

104. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

105. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under

42 U.S.C. § 1983 Against Individual Defendants

107. The above paragraphs are here incorporated by reference as though fully set forth herein.

108. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

109. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

110. Defendants intended to inflict substantial harm upon Plaintiff.

111. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

112. Defendants' actions deprived Plaintiff of his constitutional rights, pursuant to the Fourteenth Amendment.

113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

114. The above paragraphs are here incorporated by reference as though fully set forth herein.

115. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the District Attorney's Office.

116. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement.

117. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

118. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

119. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

120. The above paragraphs are here incorporated by reference as though fully set forth herein.

121. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the District Attorney's Office.

122. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement.

123. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

124. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

125. The above paragraphs are here incorporated by reference as though fully set forth herein.

126. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

127. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

128. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

129. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

130. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

131. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

132. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

133. The above paragraphs are here incorporated by reference as though fully set forth herein.

134. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

135. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

136. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

137. The above paragraphs are here incorporated by reference as though fully set forth herein.

138. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

139. Accordingly, the Defendants who failed to intervene violated the Fourth, Sixth and Fourteenth Amendments.

140. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

141. The above paragraphs are here incorporated by reference as though fully set forth.
142. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.
143. Defendant City breached those duties of care.
144. Defendant City placed defendants in a position where they could inflict foreseeable harm.
145. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
146. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
147. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

148. The above paragraphs are here incorporated by reference as though fully set forth.
149. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.
150. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.
151. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate

indifference toward the rights of those who may come into contact with defendant City's employees.

152. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

153. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

154. Defendant City's conduct caused the violation of plaintiff's civil rights enumerated within the Constitution of the United States, including the Fourth, Sixth and Fourteenth Amendments thereto.

155. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- s) Awarding Plaintiff reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Bayside, New York
November 27, 2019

Respectfully submitted,



SIM & DEPAOLA, LLP
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff
4240 Bell Blvd - Suite 201
Bayside, New York 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by myself and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
November 27, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MUHAMMAD ADDISON,

Plaintiff,

-against-

CITY OF NEW YORK, Individually and officially in their capacities as New York City Police
Officers, WILLIAM STUMP, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard
Suite 201
Bayside, New York 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for